

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, August 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-29887 against Sergeant Jose Holguin, Tax Registry No. 935027. This case was conferenced on July 25, 2024¹, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who objected to the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of ten (10) vacation days but endorsed the plea, so as not to delay the process. Nevertheless, CCRB maintains that the negotiated penalty is appropriate, and Sergeant Jose Holguin accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated February 1, 2024. Charges and Specifications are dismissed for plea purposes.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

APPROVED

Thomas G. Donlon
SEP 2 0 2024

THOMAS G. DONLON
INTERIM POLICE COMMISSIONER

¹ At the plea conference on July 25, 2024, ADCT Facio-Lince voiced concerns over the plea agreement and was hesitant to endorse the plea and adjourned the case to July 31, 2024. Later that day, CCRB and opposing counsel received an email from ADCT Facio-Lince stating that "I have had adequate time to digest the information and while I am endorsing the plea, so as not to delay the process any longer, I continue to note my concern and objection as I did at the conference. Therefore, we will not be needing a further conference date on Tuesday, July 31."



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-29887
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, HOLGUIN	FIRST JOSE	M.I. A	COMMAND 060 PRECINCT
SHIELD NO. 5495	TAX REGISTRY NO. 935027	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Jose Holguin, on or about December 11, 2022, at approximately 0211, while assigned to the 60th Precinct and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he threatened to remove § 87(2)(b) to the hospital without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Jose Holguin, on or about December 11, 2022, at approximately 0211, while assigned to the 60th Precinct and on duty, in the vicinity of § 87(2)(b) Kings County, used offensive language, in that he stated: you have a mental issue or something to § 87(2)(b)	DISMISSED	

DC [Signature]
FIRST DEPUTY COMMISSIONER

8/22/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

[Signature]
POLICE COMMISSIONER

9/20/24
DATE